

## □ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

**If you are in immediate danger, call 911.**

You can reach trained, confidential help any time:

- **National Domestic Violence Hotline** — call 1-800-799-7233, or text START to 88788 (<https://www.thehotline.org>)
- **National Dating Abuse Helpline** — call 1-866-331-9474, or text LOVEIS to 22522
- **Eldercare Locator** — call 1-800-677-1116 (<https://eldercare.acl.gov>)
- **Adult Protective Services** — call Contact your local APS agency
- **Stalking Prevention, Awareness, and Resource Center (SPARC)** (<https://www.stalkingawareness.org>)
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)
- A safety plan can help you prepare for emergencies. The National DV Hotline can help create one.

**Asking a court to protect you.** If someone has hurt you or made you afraid, you can ask a court for an **Order for Protection** (sometimes called a

restraining order). It is a free request you can make yourself: the court clerk's office or a local advocate can give you the forms and walk you through them, often the same day. A domestic violence advocate (reachable through the hotline above) can help you fill them out and can go with you.

You get to decide what feels safe for you. The steps above are here whenever you are ready.

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## □ Deadlines & Time-Sensitive Items

**Read this first.** Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

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△ **I don't want to put my son in jail, I just want my money to stop disappearing and to keep my house and honestly I don't want to be afraid at my own kitchen table.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

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⚠ **Dale grabbed my wrist hard enough to leave a bruise on June 14th.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-06-14
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

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⚠ **The bank sent me a letter dated June 26th saying they flagged unusual activity and want me to come in.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** deadline on 2026-07-10
- **Jurisdiction:** MN
- Estimated — confirm the exact date with the court or a lawyer.

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⚠ **there's some appointment on July 16th where I'm apparently supposed to sign listing papers.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
  - **Triggering event:** hearing on 2026-07-16
  - **Jurisdiction:** MN
  - Estimated — confirm the exact date with the court or a lawyer.
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## Executive Summary

This intake found 13 possible legal problems in Minnesota. The main issues are Elder Abuse - Financial Exploitation, Informed Consent Issues, and Undue Influence. Four important dates were found. You should check these dates with the court or a lawyer. Safety problems were found in this story. You can see safety resources below. The analysis is complete. There are 29 follow-up questions below to help with the assessment.

**Completeness Score:** 100%

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## Triage & Routing Recommendations

**Primary Practice Area:** General Civil

**Primary Jurisdiction:** General

**Complexity:** High

**Urgency:** Emergency

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Ranked Recommendations

**1. General Civil** (Score: 0.66)

General Civil practice area (100% of claims); mixed jurisdictions (70% concentration); high complexity; emergency urgency

| Factor              | Score |
|---------------------|-------|
| Practice Area Match | 100%  |
| Jurisdiction Match  | 70%   |
| Complexity Score    | 20%   |

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## Action Items

### Documents to Gather

- [ ] **[URGENT]** Element 'Fraudulent Misrepresentation' is not yet supported by any facts
  - **Claim:** Elder Abuse - Financial Exploitation
  - **Element:** Fraudulent Misrepresentation
- [ ] **[URGENT]** Element 'Mental Capacity' is not yet supported by any facts
  - **Claim:** Elder Abuse - Financial Exploitation
  - **Element:** Mental Capacity
- [ ] **[HELPFUL]** Element 'Relationship between Parties' is not yet supported by any facts
  - **Claim:** Domestic Violence
  - **Element:** Relationship between Parties

### Follow-up Steps

- [ ] **[URGENT]** You asked if you can 'undo' the power of attorney. Yes — as long as your mind is clear, you can revoke it at any time with a signed, dated writing, and it takes effect against others (like the bank) once they actually get notice (Minn. Stat. § 523.11). The key step is delivering written revocation to BOTH your son and the bank right away. Would you like help doing that this week? [Authority: Minn. Stat. § 523.11, subd. 1 (a competent principal may revoke a power of attorney by a signed, dated writing; effective as to a third party on actual notice)]
- [ ] **[URGENT]** What you described — being physically hurt or threatened by a family or household member — may qualify you for an Order for Protection (a court order that can be issued the same day you ask, before any hearing). In Minnesota this is Minn. Stat. § 518B.01; other states have an equivalent. Would you like

- information about asking the court for one now, separate from any other case? [Authority: Minn. Stat. § 518B.01 (Order for Protection; ex parte relief available)]
- [ ] **[URGENT]** Because you may be a 'vulnerable adult' (relying on your son for care after surgery), there is a special court order that can quickly FREEZE the account draining and block the house sale — an Order for Protection Against Financial Exploitation of a Vulnerable Adult (Minn. Stat. § 609.2334), which a judge can issue right away in an emergency. This can also be reported to the state (MAARC, Minn. Stat. § 626.557). Would you like to ask the court for this before the July 16 appointment? [Authority: Minn. Stat. § 609.2334 (Order for Protection Against Financial Exploitation of a Vulnerable Adult — ex parte relief available); Minn. Stat. § 626.557 (vulnerable-adult reporting / MAARC)]
  - [ ] **[URGENT]** Even under a power of attorney, your son could pay himself or transfer your money to himself ONLY if the document specifically allowed it (Minn. Stat. § 523.24) — if that box was left blank, those transfers and the 'caregiver pay' likely exceeded his authority, revocation or not. A missing notary can also make the whole POA invalid (Minn. Stat. § 523.01). Do you have the actual POA document so a lawyer can check what was and wasn't authorized? [Authority: Minn. Stat. § 523.24 (statutory short-form POA authorizes self-gifting/self-transfers only if expressly elected); Minn. Stat. § 523.01 (valid POA requires acknowledgment)]
  - [ ] **[URGENT]** Your son grabbed your wrist hard enough to bruise and threatened you in your own home. Because he is a family/household member, you can ask for an Order for Protection that a judge can grant the same day (Minn. Stat. § 518B.01); a Harassment Restraining Order (Minn. Stat. § 609.748) is a backup. This is separate from the money issues. Do you have the photo of the bruise and would you feel safer with such an order? [Authority: Minn. Stat. § 518B.01 (Order for Protection — a son living in the home is a family/household member; ex parte relief); Minn. Stat. § 609.748 (Harassment Restraining Order fallback)]

- [ ] **[IMPORTANT]** Potential claim 'Capacity Issues' has not been explored with fact mappings
  - **Claim:** Capacity Issues
- [ ] **[IMPORTANT]** Potential claim 'Reporting Obligations' has not been explored with fact mappings
  - **Claim:** Reporting Obligations
- [ ] **[IMPORTANT]** Potential claim 'Breach of Duty' has not been explored with fact mappings
  - **Claim:** Breach of Duty
- [ ] **[IMPORTANT]** Potential claim 'Potential Emotional Distress' has not been explored with fact mappings
  - **Claim:** Potential Emotional Distress
- [ ] **[IMPORTANT]** Potential claim 'Financial Elder Abuse' has not been explored with fact mappings
  - **Claim:** Financial Elder Abuse
- [ ] **[IMPORTANT]** Potential claim 'Physical Elder Abuse' has not been explored with fact mappings
  - **Claim:** Physical Elder Abuse
- [ ] **[IMPORTANT]** Potential claim 'Abuse of Adults' has not been explored with fact mappings
  - **Claim:** Abuse of Adults
- [ ] **[IMPORTANT]** Potential claim 'Civil Claims' has not been explored with fact mappings
  - **Claim:** Civil Claims
- [ ] **[IMPORTANT]** Potential claim 'Undue Influence' has not been explored with fact mappings
  - **Claim:** Undue Influence

- [ ] **[IMPORTANT]** Potential claim 'Informed Consent Issues' has not been explored with fact mappings
  - **Claim:** Informed Consent Issues
- [ ] **[IMPORTANT]** Potential claim 'Improper Use of Power of Attorney' has not been explored with fact mappings
  - **Claim:** Improper Use of Power of Attorney
- [ ] **[IMPORTANT]** What is the filing deadline for financial exploitation claims in your jurisdiction?
  - **Claim:** Elder Abuse - Financial Exploitation
- [ ] **[IMPORTANT]** Are there jurisdiction-specific requirements for challenging the validity of a power of attorney executed under questionable circumstances?
  - **Claim:** Power of Attorney Abuse
- [ ] **[IMPORTANT]** What is the statute of limitations for filing a domestic violence claim in your area?
  - **Claim:** Domestic Violence
- [ ] **[IMPORTANT]** Is there a specific procedural requirement for reporting financial elder abuse in your state?
  - **Claim:** Financial Elder Abuse
- [ ] **[IMPORTANT]** Are there mandatory reporting requirements for physical abuse of elders in your jurisdiction?
  - **Claim:** Physical Elder Abuse
- [ ] **[IMPORTANT]** What are the jurisdictional requirements for pursuing claims of adult abuse?
  - **Claim:** Abuse of Adults
- [ ] **[IMPORTANT]** Are there any procedural gaps or specific filing requirements for civil claims related to elder abuse?
  - **Claim:** Civil Claims



- [ ] **[IMPORTANT]** What procedural steps must be taken to prove undue influence in the context of a power of attorney?
  - **Claim:** Undue Influence
- [ ] **[IMPORTANT]** What evidence is required to challenge someone's legal capacity to authorize documents due to their physical condition?
  - **Claim:** Capacity Issues
- [ ] **[IMPORTANT]** What are the steps for initiating a bank fraud investigation related to elder financial exploitation in your jurisdiction?
  - **Claim:** Bank Fraud Investigation